ATTORNEY OR PARTY WITHOUT ATTORNEY STATE BAR NUMBER: 338165
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ATTORNEY FOR (name): GREGORIO GARCIA, Plaintiff

FOR COURT USE ONLY

ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
07/16/2025
Clerk of the Court
BY: MADONNA CARANTO
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO
STREET ADDRESS: 400 McAllister St
MAILING ADDRESS: 400 McAllister St
CITY AND ZIP CODE: San Francisco, CA 94102
BRANCH NAME: CIVIC CENTER COURTHOUSE

PLAINTIFF/PETITIONER: GREGORIO GARCIA
DEFENDANT/RESPONDENT: General Motors LLC

REQUEST FOR DISMISSAL

CASE NUMBER: CGC-24-614473

A conformed copy will not be returned by the clerk unless a method of return is provided with the document.

This form may not be used for dismissal of a derivative action or a class action or of any party or cause of action in a class action. (Cal. Rules of Court, rules 3.760 and 3.770.)

1. TO THE CLERK: Please **dismiss** this action as follows:
   a. (1) [ ] With prejudice (2) [x] Without prejudice (3) [ ] Without prejudice and with the court retaining jurisdiction (Code Civ. Proc., § 664.6)
   b. (1) [x] Complaint (2) [ ] Petition
   (3) [ ] Cross-complaint filed on *(date)*: by *(name)*:
   (4) [ ] Cross-complaint filed on *(date)*: by *(name)*:
   (5) [x] Entire action of all parties and all causes of action
   (6) [ ] Other *(specify)**:
2. *(Complete in all cases except family law cases.)*
   The court [ ] did [x] did not waive court fees and costs for a party in this case. *(This information may be obtained from the clerk. If court fees and costs were waived, the declaration on the back of this form must be completed.)*

Date: July 16, 2025

Nicholas Yowarski, Esq.
(TYPE OR PRINT NAME OF [x] ATTORNEY [ ] PARTY WITHOUT ATTORNEY)

(SIGNATURE)
Attorney or party without attorney for
[ ] Plaintiff/Petitioner [ ] Defendant/Respondent
[ ] Cross-Complainant

* If dismissal requested is of specified parties only, of specified causes of action only, or of specified cross-complaints only, so state and identify the parties, causes of action, or cross-complaints to be dismissed

3. TO THE CLERK: Consent to the above dismissal is hereby given.†
Date:

(TYPE OR PRINT NAME OF [ ] ATTORNEY [ ] PARTY WITHOUT ATTORNEY)

(SIGNATURE)
Attorney or party without attorney for
[ ] Plaintiff/Petitioner [ ] Defendant/Respondent
[ ] Cross-Complainant

† If item 1a(3) is checked, all parties must sign.
If a cross-complaint—or *Response—Marriage/Domestic Partnership* (form FL-120) seeking affirmative relief—is on file, the attorney for cross-complainant (respondent) must sign this consent if required by Code of Civil Procedure section 581(i) or (j).

[ ] Check here and use form MC-025 or a separate page for additional signatures. Include date, printed name, and party information.

4. [ ] Dismissal entered as requested on *(date)*:
5. [ ] Dismissal entered on *(date)*: as to only *(name)*:
6. [ ] Dismissal **not entered** as requested for the following reasons *(specify)*:

DISMISSAL ENTERED
07/16/2025
By: MADONNA CARANTO
Deputy Clerk

7. a. [ ] Attorney or party without attorney notified on *(date)*:
   b. [ ] Attorney or party without attorney not notified. Filing party failed to provide
   [ ] a copy to be conformed [ ] means to return conformed copy

Date: Clerk, by _____, Deputy

PLAINTIFF/PETITIONER: GREGORIO GARCIA DEFENDANT/RESPONDENT: General Motors LLC	CASE NUMBER: CGC-24-614473

COURT'S RECOVERY OF WAIVED COURT FEES AND COSTS

If a party whose court fees and costs were initially waived has recovered or will recover $10,000 or more in value by way of settlement, compromise, arbitration award, mediation settlement, or other means, the court has a statutory lien on that recovery. The court may refuse to dismiss the case until the lien is satisfied. (Gov. Code, § 68637.)

Declaration Concerning Waived Court Fees

1. The court waived court fees and costs in this action for *(name):*
2. The person named in item 1 is *(check one below)*
   a. ☐ not recovering anything of value by this action.
   b. ☐ recovering less than $10,000 in value by this action.
   c. ☐ recovering $10,000 or more in value by this action. *(If item 2c is checked, item 3 must be completed.)*
3. All court fees and court costs that were waived in this action have been paid to the court *(check one):* ☐ Yes ☐ No

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date:

(TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY MAKING DECLARATION)

(SIGNATURE)

PROOF OF SERVICE

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is 10880 Wilshire Blvd., Suite 1600, Los Angeles, CA 90024.

On July 16, 2025, I served the following document(s) described as:

REQUEST FOR DISMISSAL

That document was served on parties herein in this proceeding as follows:

SEE ATTACHED SERVICE LIST

[] (BY MAIL) I am "readily familiar" with the practices of Quill & Arrow, LLP, in collecting and processing correspondence and documents for mailing. Under that practice, documents for mailing would be deposited with the US Postal Service on that same day this affidavit is signed with postage fully prepaid at Los Angeles, California in the ordinary course of business. I am aware that on motion of the party served, service is presumed invalid if the postal cancellation date is more than 1-day after the day of deposit for mailing the affidavit. [CCP § 1013]

[] **(BY OVERNIGHT MAIL)** I am "readily familiar" with the practices of the Quill & Arrow, LLP, for collection and processing of documents for mailing via overnight delivery. I caused such document(s) to be placed in a sealed envelope designated by the overnight service carrier, addressed to the person(s) on whom it is to be served pursuant to the attached service list, and deposited said envelope in a box or other facility regularly maintained by the overnight service carrier with delivery fees paid or provided for. [CCP § 1013(c)]

[X] **(BY ELECTRONIC MAIL)** I caused the document(s) to be transmitted by electronic mail to the e-mail addresses for each party indicated on the attached service list.

[] (BY PERSONAL DELIVERY) I caused to be delivered such envelope by hand to the addressee at the address indicated on the attached service list.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on July 16, 2025.

/s/Patrick F. Dickinson
Patrick F. Dickinson

SERVICE LIST

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